

24STCV26192 24STCV26192

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Case Number: 24STCV26192 Hearing Date: August 4, 2026 Dept: 732

Raul R. Constantino v. General Motors, LLC, et al.

Tuesday, August 4, 2026

CASE NUMBER: 24STCV26192

OPPOSED

Defendant General

Motors, LLC's Motion for Summary Judgment.

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiff Raul Constantino ("Plaintiff") purchased a 2020 Chevrolet Bolt on February 24, 2020, with an express written warranty. (Complaint ¶¶ 7–8.) The vehicle was delivered with or developed defects during the warranty period that the manufacturer has been unable to repair within a reasonable number of attempts. (Complaint ¶¶ 8–9.)

Procedural History: Plaintiff

filed the Complaint on October 9, 2024, alleging five causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Express Written Warranty

5.

Breach of Implied Warranty of Merchantability

On

April 7, 2026, this court granted in part Plaintiff's motion to compel further responses to requests for production of documents.

On

April 16, 2026, this court denied Defendant's motion to dismiss

Defendant

filed the present motion for summary judgment on May 13, 2026.

Plaintiff

filed an opposition on July 24, 2026.

Defendant

filed a reply on July 24, 2026.

Analysis

I.

OBJECTIONS

Plaintiff submits

several objections to the evidence in support of Defendant General Motors, LLC's motion for summary judgment. Objection No. 2 to the declaration of Ryan Bowton is SUSTAINED, as Bowton's testimony concerning whether Plaintiff opted out of the class settlement is offered without any foundation in personal knowledge. The remaining objections are OVERRULED, as the facts stated merely introduce

judicially noticeable court records, repeat the allegations of Plaintiff's own Complaint, or else are directed to the characterization of facts in Defendant's separate statement, and thus are not a proper subject of evidentiary objection.

II.

MOTION FOR SUMMARY JUDGMENT

A party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord Code Civ. Proc. § 437c, subd. (p)(2).)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (*Aguilar*, supra, 25 Cal.4th at 850.)

The plaintiff may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. (*Ibid.*)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Defendant General

Motors, LLC ("Defendant") moves for summary judgment on the claims of Plaintiff Raul R. Constantino ("Plaintiff") because they are barred by the class action settlement and release finally approved on December 22, 2025, in the case *In re Chevrolet Bolt EV Battery Litigation*, No. 2:20-cv-13256-TGB-CI (E.D. Mich.) ("The Class Action"). (Motion at pp. 5–6.)

“ “[A] judgment pursuant to a class settlement can bar [subsequent] claims based on the allegations underlying the claims in the settled class action. This is true even though the precluded claim was not presented, and could not have been presented, in the class action itself.” (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 586.) “Under the doctrine of *res judicata*, a valid, final judgment on the merits is a bar to a subsequent action by parties or their privies on the same cause of action.” (*Id.* at p. 575.) “The doctrine is applicable “if (1) the decision in the prior proceeding is final and on the merits; (2) the present proceeding is on the same cause of action as the prior proceeding; and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.” (*Id.* at p. 577.)

Plaintiff in opposition argues that Defendant cannot assert the affirmative defense of *res judicata* based on the release because it failed to plead the defense in its answer, and further that Defendant’s separate statement fails to designate each cause of action to which the facts pertain. (Opposition at pp. 7–9.)

Both arguments fail. “[C]ourts generally have allowed an affirmative defense to be asserted for the first time in a motion for summary judgment “absent a showing of prejudice.” (*Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1341.) Plaintiff articulates no prejudice resulting from the lack of any applicable defense pleaded in Defendant’s answer. And as Defendant notes, it did not possess the defense until the order finally approving the class action settlement and the judgment to be entered thereon in December 2025, after which it brought a motion to dismiss, followed by the present motion for summary judgment. Nor does Defendant’s separate statement need to delineate which causes of action are at issue, as Defendant’s arguments apply equally to each cause of action pleaded by Plaintiff. Thus Plaintiff’s procedural challenges to the present motion do not warrant denial.

This is what the evidence before the court now shows. A final approval of settlement and judgment was entered in the Class Action on December 22, 2025. (Bowton Decl. Exh. C.) Per that order, the action involved defects in the battery system of Chevy Bolt vehicles nationwide. (Bowton Decl. Exh. C.) The court in its order divided the claims at issue in the class action into three categories: “(1) claims of fraudulent concealment, fraudulent misrepresentation, and violation of state consumer protection statutes; (2) federal and state warranty law claims; and (3) unjust enrichment claims. Plaintiffs seek to represent a putative nationwide class as to some claims and fourteen state subclasses.” (Bowton Decl. Exh. C at p. 3.)

The class certified for settlement was defined as follows:

Any persons in the United States who purchased or leased, other than for resale, a 2017, 2018, 2019, 2020, 2021, or 2022 Model Year Chevrolet Bolt built and shipped to a dealer on or before August 19, 2021 and who have not received a buyback of their vehicle from General Motors or a General Motors authorized dealer.

(Bowton Decl. Exh. C at p. 6.)

The settlement included a release stating as follows:

Upon the Effective Date, Plaintiffs and each Settlement Class Member, on behalf of themselves and any other legal entity or natural persons who may claim by, through, or under them, shall fully, finally and forever release, relieve, and discharge the Released Parties from and against any and all claims, demands, actions, suits, causes of action, allegations, rights, obligations, costs, losses, interests, debts, penalties, costs, liabilities, injunctive or declaratory relief, attorneys’ fees, and damages of any sort, known and unknown, suspected or unsuspected, fixed or contingent, now existing or hereafter, arising in whole or in part from or in connection with acts or omissions of any of the Defendants and their attorneys that were brought or could have been brought in this Action whether in law or in equity, in tort or

contract, or arising under any nature or regulation.

(Bowton Decl. Exh. B, § 8.1.)

Per the final approval

order, preliminary settlement approval was granted on September 26, 2024.

(Bowton Decl. Exh. C at p. 6.) The deadline for mailing in opt-out notices was February 24, 2025. (Bowton Decl. Exh. C at p. 8.) A fairness hearing was held on May 19, 2025, whereupon it was learned that around 5,000 vehicle owners had not been included in the notice list, and additional time was granted to permit their receipt of notice and an opportunity to opt out or object. (Id. at pp. 9–10.) In the meantime, the court heard motions from those who felt they had been omitted in error from the settlement administrator's "exclusion report," the list of those who had submitted valid opt-out requests. (Ibid.) A supplemental fairness hearing was held on September 29, 2025. (Id. at p. 10.) The settlement was finally approved on December 22, 2025.

Based on the above,

Defendant has shown the following undisputed material facts. First, Defendant has shown that Plaintiff was a member of the class at issue in the Class Action by virtue of his purchase and ownership of the subject vehicle, as alleged in the Complaint. Second, Defendant has shown that the class action settlement and release approved and ordered by the court encompasses the claims that Plaintiff alleges here. These claims include causes of action for violation of California warranty statutes, sounding in defects in the subject vehicle's battery, causing it to overheat and potentially catch fire. (Complaint ¶ 8.) This comports with the claims at issue in the Class Action. (Bowton Decl. Exh. C at p. 2.) The release encompassed all claims "arising in whole or in part from or in connection with acts or omissions of any of the Defendants and their attorneys that were brought or could have been brought in this Action." (Bowton Decl. Exh. B, § 8.1.) This encompasses Plaintiff's claims here.

But as with its prior

motion, Defendant does not demonstrate that Plaintiff was among those bound by the settlement through failure to opt out. This is the second motion in which Defendant raises the class action settlement as a bar to Plaintiff's claims. In denying Defendant's prior motion to dismiss, the court noted that Defendant relied on an "exclusion report" submitted with a declaration of the settlement administrator purporting to identify all persons who had opted out of the

class, but that the final order that Defendant presented for judicial notice had relied on a different exclusion report, submitted after the first on November 10, 2025, which Defendant had not presented. (See 4/16/2026 Order; Bowton Decl. Exh. C at p. 43.)

Strangely, Defendant

does not rectify the defect in the present motion. Instead of presenting the operative exclusion report, which was incorporated into the federal court's order granting final approval of settlement, it presents no report at all, and submits the declaration of its own counsel, who states, "Based on GM's records and information from the settlement administrator, Plaintiff did not submit a timely opt- out request." (Bowton Decl. ¶ 5.) Plaintiff rightly objects to this assertion as lacking foundation in personal knowledge, and as being evidently based on hearsay.

Defendant in opposition

argues that Plaintiff fails to present evidence that he opted out, and in fact presents the declaration of his counsel to the effect that he did not receive notice of the settlement, which ought to require a conclusion that he did not opt out of it. (Reply at pp. 4–5.) This argument is somewhat diminished by the fact that Plaintiff's counsel has no foundation in personal knowledge for making any assertion concerning the notice received by his client. (Banayan Decl. ¶ 7.) It is further diminished when Defendant

goes on to argue that the assertion of Plaintiff's counsel is wrong, and that Plaintiff had actual knowledge of the settlement on March 6, 2026, in time to raise a belated request to be excluded from the settlement. (Reply at p. 6.) To the extent that Defendant argues that the court ought to infer the non-existence of any valid opt-out from Plaintiff's failure to assert one, it is substantially vitiated by the counter-inference that if the operative exclusion report in fact omitted Plaintiff, then Defendant would have presented the report, particularly in light of the court's prior order on the subject. At present, the court lacks any evidentiary basis to embrace Defendant's contention that the no opt out request was sent. And as Defendant is the one asserting the res judicata bar, the burden is on them to show that the bar applies: "A defendant who advances an affirmative defense to the plaintiff's claims bears the burden of proof on the defense." (Hinerfeld-Ward, Inc. v. Lipian (2010) 188 Cal.App.4th 86, 93.)

The motion is therefore

DENIED.

Superior Court of California

County of Los Angeles

Department 732

RAUL

R. CONSTANTINO.,

Plaintiffs

v.

GENERAL MOTORS, LLC, et al.,

Defendants.

Case No.:

24STCV26192

Hearing Date: August 4, 2026

[TENTATIVE] RULING RE:

Defendant

General Motors, LLC's MOTION FOR SUMARY JUDGMENT.

Defendant General Motors, LLC's Motion for Summary

Judgment is DENIED.

Plaintiffs to give notice.

Dated: August 4, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court